NATURAL LAW

THE ESSENCE AND VARIETIES OF LAW

ESSENCE

- As rational beings, we have FREE WILL. Through capacity of reason, human beings are able to judge between possibilities and to choose to direct our actions in one way or the other.

- Our actions are directed towards attaining ends or goods that we desire. However, just because we think that a certain end is good and it is therefore desirable does not necessarily mean it is indeed good. That is why it is important for REASON to always be part of the process.

- Acts are rightly directed toward their ends by reason. It is necessary to think carefully of what really is in fact good for us.

ESSENCE

- Aquinas reminds us that we cannot simply act in pursuit of our own ends of goods without considering other people's ends or goods since we are not isolated beings and do belong to a community. We have to consider what is good for the community as well as our own good or the so called **COMMON GOOD.**

- Since we must consider not only our own goods but also the ends or goods of the others, there would have to be some kind of measure to our own acts. We must recognize the proper measures or the limits in our actions that would lead to the ends or goods of ourselves and at the same time the others. This determination of the proper measures of our acts can be referred to **LAW**.

ESSENCE

- Example of law as limits or measures is the traffic rules. A motorist cannot just drive in any way he likes but must respect traffic rules. These rules which impose limits to a motorist is something that is good both for him and for the others as it helps to prevents motor accident.

- Therefore, a **LAW** is concerned with the **COMMON GOOD**. Making of law belongs to a public person or group of people who care for the common good or the concern for the good of the community or of the whole people.

- It is necessary for rules or laws to be communicated to the people involved in order to enforce them and to better ensure compliance. This communication refers to **PROMULGATION**.

VARIETIES OF LAW

ETERNAL LAW

- Aquinas writes " He (God) governs all the acts and movements that are to be found in each single creature, so the type of Divine wisdom, as moving all things to their due end, bears the character of law." This involves the assertion that Divine wisdom direct each being towards its proper end can be called **ETERNAL LAW**.

- **ETERNAL LAW** refers to what God wills for creation, how each participant in it is intended to return to Him. *Human beings* as rational, unlike animals and plants, *participates more fully and perfectly* given the capacity for reason.

- Irrational creatures such as *plants and animals* are participating in ETERNAL LAW although they are not conscious of this law. They are complying simply through their *instinctual following of their nature and moved by divine providence.*

NATURAL LAW

- Aquinas writes "Wherefore it has a share of Eternal Reason, whereby it has a natural inclination to its proper act and end: and this participation of the eternal law in the rational creature is called the NATURAL LAW.

- This simply means that human individuals as rational creature shares eternal reason as they participate in the eternal law which is part of what God's will. Human individual as a rational being has a natural inclination to these eternal law.

- Therefore, by looking at our human nature, at the natural inclinations given to us by God, we can determine the rule and measure that should be directing our acts. These rules and measures can be referred to NATURAL LAW.

HUMAN LAW

- This refers to all instances wherein human beings construct and enforce laws in their communities. According to Aquinas, one who have a basis for assessing the validity or invalidity of human law is whether or not in conforms to natural law.

- Meaning, human law should always conforms with the natural law in order to assess its validity. Natural law is general while human law is specific and more concrete to actual operation of human acts.

DIVINE LAW

- Instructions that can direct us to supernatural end. Supernatural end refers to more complete happiness that surpasses human nature and can be obtained through the power of God alone.

- This law refers specifically to instances where we have instructions that come from divine revelation. Ex. What is handed to us by sacred Scriptures such as the Ten Commandments.

- This is different from eternal law because it simply tell that there is a divine wisdom that directs each beings or creature. Divine Law has written revelation that can be found in say for example Gospels.

DIFFERENCES OF FOUR:

- ETERNAL LAW- there is a **divine wisdom** that directs our acts.
- NATURAL LAW- it is the **natural inclination** of human beings to eternal law as they participate on it.
- HUMAN LAW- the **more specific or more concrete to human acts**.
- DIVINE LAW- instructions coming from **divine revelations** (gospels, Ten Commandments.)

SOURCE: Bulaong, Jr., O., et. al,. (2018). Ethics: Foundations of Moral Valuation. Rex Book Store, Inc.

SPECIFICS CONCERNING NATURAL LAW

By: Ms. Josille Marquez

THE NATURAL LAW

- Summa Theologiae 1-2 , Question 94, Article 2 by Thomas Aquinas

- Order of the precepts of Natural Law is according to the order of natural inclinations. Below are examples of order of natural inclination of man that are also associated to the precepts of Natural law.

- First, every substance seeks the preservation of its own being, second, there is in man an inclination to things that pertain to him more specially, according to that nature which he has in common with other animals. (sexual intercourse or the care of one's offspring)Third, there is in man an inclination to good, according to the nature of his REASON. Therefore, man has a natural inclination to know the truth about God, and to live in society. (Example is to avoid ignorance and avoid offending those among whom one has to live.

IN COMMON WITH OTHER BEINGS

- Aquinas identifies nature of man which is common to other beings. This is the desire to ***preserve one's own being***.

- A makahiya leaf folds inward and protect itself when touched. A cat tries to run away when it feel threatened. Similarly, humans have their own way of preserving their lives.

- Since preservation of life is in line with Natural law, taking one's life is therefore against to it. Murder, therefore is against Natural law. Acts that promote the continuation of life are to be lauded as ethical because they are in line with the Natural law.

IN COMMON WITH OTHER ANIMALS

- Aquinas stated that there are desires wherein we, humans are in common with other animals such as ***the desire to sexual intercourse and the care of one's offspring***. Animals periodically engage in sexual intercourse at a specific time of "heat" which could result to offspring just like how human beings have natural inclination to engage in sexual act and to reproduce.

- However, the *connection between the sexual act or engaging in a sexual intercourse and fecundity or producing offspring becomes problematic.* One issue arose is the acceptability or unacceptability of abortion in Natural law. From the precepts of Natural law, every substance must preserve their beings, therefore the act of preventing a new life is unacceptable.

UNIQUELY HUMAN

- Humans have inclination to good according to the nature of our reason. This natural inclination is to know the truth about God and to live in society. Examples given are to shun ignorance and to avoid offending those people with whom one lives. Therefore, act of deception or fraud would be unacceptable to Aquinas.

- Aquinas does not go into details enumerating what specific actions would be ethical or unethical. He only gave general guideposts: the epistemic concern (we know we pursue the truth) and the social concern (we know we live in relation to others). The question of what particular acts to pursue or not is something that we have to determine for ourselves through the use of **REASON**.

UNIQUELY HUMAN

- Reason is the defining part of human nature. We need to recognize that while our other inclinations are good, what is means to be HUMAN is, precisely to EXERCISE OUR REASON in our consideration of how the whole self should be comported toward the good.

- Human is rational. Humans should take up the burden of thinking carefully how a particular act may or may not be a violation of our nature. Humans must think carefully about how their acts would either contribute to or detract from the common good.

SUMMARY

- Natural law is instrumental to ethics and is rooted to Christian faith.

- Our own objective to ethics is our own natural inclinations. Since these natural inclinations are given by God, they provide the path towards perfection.

- Natural inclinations as enumerated by Aquinas include the desire to preserve our being (which is common with other beings including plants), the sexual acts and its fecundity (in common with animal beings) and lastly is our use of reason (which is uniquely human.)

SOURCE: Bulaong, Jr., O., et. al,. (2018). Ethics: Foundations of Moral Valuation. Rex Book Store, Inc.